

JUSTIFICATION AND APPROVAL OTHER THAN FULL AND OPEN COMPETITION

1. Identification of the agency and the contracting activity.

This justification is executed by the Naval Medical Research Command (NMRC), Silver Spring, MD, on behalf of the Navy to meet Navy Expeditionary Medical Research requirements.

2. Nature and/or description of the action.

The Genomics & Bioinformatics Department of the Biological Defense Research Directorate, Naval Medical Research Command-Frederick maintains a state-of-the-art phage therapy portfolio aimed at ultimately providing medical countermeasures for the fleet. As part of the program, pan- and multiple-drug resistant bacterial isolates are routinely used in the laboratory to isolate and propagate bacteriophages under study. As part of the on-going effort, centrifuges are utilized for (i) clarification (removal of host debris), (ii) concentration and (iii) purification (density gradient centrifugation) of phage particles and host bacteria. In summary, centrifuges support the physical separation of phage particles from both larger host cell contaminants and the bulk of the liquid medium to generate purified phage preparations for conducting both in vivo and in vitro experiments. These experiments are related to development of various phage-based therapeutics and prophylactic products. Basically, due to a consistent high demand to conduct state-of-the-art phage research for Navy medicine, “centrifuges” are an integral part of sustaining daily research activities. Therefore, this laboratory instrumentation must be maintained in proper condition to facilitate the generation of authentic and accurate research results for maintaining scientific integrity. Thus, periodical service and preventative maintenance of the machine is required by certified authorized technicians. Without proper service agreements, mission critical scientific research of NMRC may be compromised due to instrument failure.

3. Description of Supplies or Services:

Protective full risk maintenance/repair plan for Beckman Coulter Optima XPN-90 Centrifuge, S/N XPN17G22 and Beckman Coulter Avanti J26XPI Centrifuge, S/N JXT08K12. One year support plan must include at a minimum:

- Full coverage for OEM parts and labor/travel for OEM certified and authorized service technicians.
- One on-site preventative maintenance (PM) visit done IAW OEM standards/requirements by OEM certified and authorized service technician(s).
- Remote technical support from OEM certified and authorized service technician(s). This support must be available for a minimum of 0600 – 1800, Monday – Friday.
- On-site response by OEM certified and authorized service technician(s) within two business days of an issue with the hardware’s performance.

Legacy care high performance maintenance/repair plan for Beckman Coulter Avanti J20XPI Centrifuge, S/N JXI02G02. One year support plan must include at a minimum:

- Full coverage for repairs and labor/travel for OEM certified and authorized service technicians. (Due to limited parts, only legacy care is offered.)
- One on-site preventative maintenance (PM) visit done IAW OEM standards/requirements by OEM certified and authorized service technician(s).

- Remote technical support from OEM certified and authorized service technician(s). This support must be available for a minimum of 0600 – 1800, Monday – Friday.
- On-site response by OEM certified and authorized service technician(s) within two business days of an issue with the hardware's performance.

Legacy care ultracentrifuge maintenance/repair plan for Beckman Coulter Optima L100XP Centrifuge, S/N LXP03B08. One year support plan must include at a minimum:

- Full coverage for repairs and labor/travel for OEM certified and authorized service technicians. (Due to limited parts, only legacy care is offered.)
- One on-site preventative maintenance (PM) visit done IAW OEM standards/requirements by OEM certified and authorized service technician(s).
- Remote technical support from OEM certified and authorized service technician(s). This support must be available for a minimum of 0600 – 1800, Monday – Friday.
- On-site response by OEM certified and authorized service technician(s) within two business days of an issue with the hardware's performance.

4. Identification of the statutory exceptions permitting other than full and open competition.

The statutory exception permitting other than full and open competition for this acquisition is 10 U.S.C. 2304(c)(1) and FAR 13.106-1(b)(1) soliciting from a single source.

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

Beckman Coulter, Inc. Life Sciences are the Original Equipment Manufacturer (OEM) of this laboratory instrumentation and thus the only source that can provide authorized service technicians.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

Market research was performed, the results of which are in paragraph 8. This requirement will be posted to the government point of entry in accordance with FAR 5.202.

7. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The Contracting Officer shall determine the anticipated cost to the Government of the supplies/services covered by this Justification and Approval will be fair and reasonable by conducting a price analysis before an award is made. In addition, the Government anticipates that the negotiated contract price will reflect a discount from Beckman Coulter, Inc's commercial price list and will be determined fair and reasonable.

8. Description of the market survey conducted and the results, or a statement of the reasons a market survey was not conducted.

Market research was conducted by technical experts in the December 2025 timeframe. The results of the market research are documented in a Market Research Memorandum.

9. Other facts supporting the use of other than full and open competition.

As above, Beckman Coulter is the manufacturer of the specific sequencing instrument and therefore, only preventative maintenance and repair service provided by Beckman Coulter is acceptable to maintain the OEM required technical standards to ensure scientific integrity. The centrifuges were previously covered by agreement S98183US purchased through Leidos.

10. Listing of Sources, if any, which expressed, in writing, an interest in the acquisition.

To date, no other sources have written to express an interest.

11. Statement of actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

Future requirements will be synopsized in accordance with FAR 5.203.

For the reasons set forth in Paragraph 5, NMRC has no plans at this time to compete future contacts for the types of services covered by this document. If another potential source emerges, NMRC will assess whether competition for future requirements are feasible.

12. Point of Contact:

The point of contact at the Naval Medical Research Command, Silver Spring, MD, regarding the contents of the sole source justification are the Contracting Officers in the Material Management Department (MMD) and can be reached by emailing usn.detrick.nmrc.mbx.mmd-contracts@health.mil.

TECHNICAL AND REQUIREMENTS CERTIFICATION REQUIRED

BY NAVSUP **4200.83 series**

I certify that the facts and representations under my cognizance which are included in this justification and approval and which form a basis for this justification are complete and accurate.

Technical Cognizance

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Kimberly Bishop-Lilly, PhD

Date

Phone

Department Head

Genomics & Bioinformatics Department, Biological Defense Research Directorate/Naval Medical Research Command

Requirements Cognizance

Name

Date

Phone

Title

Department/Command

CONTRACTING OFFICER CERTIFICATION

I certify that this justification is accurate and complete to the best of my knowledge.

CARTER.SHAMA

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4/23/2026

301-319-9948

Contracting Officer

Date

Phone